

August 31, 2016



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 16037
(THIRD REVISION)

EXPIRATION DATE: 2018-06-30

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Lanxess Corporation
Memphis, TN
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of a Class 8 (corrosive) solid in UN50G large packagings. This special permit provides no relief from the Hazardous Materials Regulations (HMR) or the International Maritime Dangerous Goods (IMDG) Code other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
 - d. This special permit serves as a "Competent Authority Approval" as defined in 49 CFR § 107.1 and as an approval in accordance with Chapter 4.1, Section 4.1.3.7 and Chapter 7.9, Section 7.9.2 of the IMDG Code.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180 and the IMDG Code.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.242, Chapter 3.2, Columns 8 and 10 in that of the IMDG Code in that Large Packagings are not authorized, except as provided herein.

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5. BASIS: This special permit is based on the application of Lanxess Corporation, dated July 26, 2016, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Corrosive solid, acidic, inorganic, n.o.s. (Monopersulfate compound)	8	UN3260	II

7. SAFETY CONTROL MEASURES:

- a. PACKAGING - Packaging prescribed is a certified UN50G fiberboard large packaging meeting the Packing Group II performance level with inner packagings consisting of either 80-12 kg or 140-5 kg paper bags as described in E.I. DuPont de Nemours & Company, Inc. application and in the Advanced Packaging Technology Laboratories, Inc.'s test report HM 8097 dated October 1, 2013, on file with the Office of Hazardous Materials Safety Approvals and Permits Division (OHMSAPD).
- b. TESTING - Large Packagings authorized under this special permit shall be certified in accordance with Subpart Q of the HMR at the Packing Group II performance level.
- c. OPERATIONAL CONTROLS - Packagings must be offered for transportation in a closed freight container or closed transport vehicle.

8. SPECIAL PROVISIONS:

- a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit, the HMR, and the IMDG Code.

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- b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
 - c. This special permit in no way affects the need to obtain any required authorizations from other agencies of the United States Government or from the competent authorities of the States of origin, transit, and destination of the consignment.
 - d. Each large packaging must be plainly and durably marked "DOT-SP 16037" as specified in §§ 172.302(b) and (c).
9. MODES OF TRANSPORTATION AUTHORIZED: Motor Vehicle, Cargo Vessel, Rail Freight.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

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Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Acting Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: LAVALLE/BenMoore/kah